

Chapter No 4

Right & responsibilities

* Overview of fundamental rights and liberties of citizens under constitution of Pakistan 1973.

The constitution of Pakistan 1973 guarantees a comprehensive set of fundamental rights, liberties to its citizens, enshrined in Part II: Chapter 1, Articles 8 to 28. These rights aim to ensure equality, freedom and protection of individuals within the framework of Islamic principle. Here's an overview.

1- Equality of citizens (Article 25):

All citizens are equal before the law and entitled to equal protection.

There shall be no discrimination on the basis of sex. Special provisions may be made for the protection of women and children.

2- Right to life and liberty (Article 9):

No person shall be deprived of life or liberty except in accordance with the law.

3- Safeguard against slavery and forced labour (Article 11 and 11A):

Slavery is prohibited.
Forced labour and trafficking of humans are forbidden.

4- Freedom of speech and expression (Article 19):

Citizens have the rights to freedom of speech and expression. This is subject to reasonable restrictions in the interest of national security, public order, decency or morality.

5- Freedom of religion (Article 20):

Every citizen has the right to profess, practice, propagate

their religion.

Religious institutions may be established and managed by citizens.

6. Safeguard Against discrimination in Religious matter (Article 21):

No person can be compelled to pay taxes specially for the propagation of any religion other than their own.

7. Protection of property rights (Article 23):

Every citizen has the right to acquire hold and dispose of property in any part of Pakistan.

8- Safeguard against arbitrary arrest and detention (Article 10 and 10A):

Every individual has the right to a fair trial and due process.

Safeguards are provided against arbitrary detention.

8- Right to education: (Article 25A):

The state shall provide free and compulsory education to children aged 5-16 years.

10- Right of Minorities (Article 26 and 27):

No discrimination shall be made in accessing public

places or services.
Minorities are protected from discrimination in appointments to public services.

11- Freedom of Association (Article 17):

Citizens have the right to form associations or unions, subject to reasonable restrictions.

12- Freedom of movement and assembly (Articles 15 and 16):

Every citizen has the right to move freely throughout Pakistan and to reside in any part of the country.

Citizens can assemble peacefully without arms, subject to legal restrictions.

13- Protection from double jeopardy and self-incrimination (Article 13):

No person shall be prosecuted or punished for the same offense more than once.

No individual shall be compelled to be a witness against themselves.

14- Right to dignity and privacy (Article 14):

The dignity of a man and the privacy of home are inviolable.

Torture for extracting evidence is prohibited.

15. Protection of family and marriage (Article 35).

The state ensures the protection of marriage, family, mother and child.

16. Right to information (Article 19A).

Every citizen has the right to access information in matters of public importance, subject to regulations.

Enforcement & Limitations:

These rights are enforceable by the judiciary, but they are subject to reasonable restrictions imposed by law in the interests of national security, morality or public order (Article 19(2)).

Why law inconsistent with these fundamental rights is void to the extent of the inconsistency.

The constitution integrates these rights with Islamic progress, principles, ensuring a balance b/w individual freedoms and collective societal values.

* Civic responsibilities and duties:

These contribute to the functioning and betterment of society.

Civic duties:

These are mandatory obligations that citizens are

required to fulfill by law:

- 1- **Obedying laws:** Respecting and adhering to the rules and regulation of the country.
- 2- **Paying taxes:** Contributing to the nation's revenue to fund public services.
- 3- **Serving on a Jury:** Participating in the judicial process when called upon.
- 4- **Registering for selective service (In some countries):**
Enrolling for potential military services
- 5- **Attending School (in some countries):**
Ensuring basic education for children.

* Civic responsibilities:

These are voluntary but morally significant acts that enhance the quality of governance and community life.

- 1- **Voting** : Participating in elections to choose representative and influences decision-making.
- 2- **Staying informed**: Keeping up-to-date with local, national and international issues.
- 3- **Respecting others rights**: Valuing and upholding the rights and freedom of others.
- 4- **Community service**: Volunteering to help improve the

community.

5- **Advocating for justice:** Standing up against injustice and supporting fairness.

6- **Recycling and Environmental protections:** Engaging in eco-friendly practices for sustainable development.

Fulfilling these duties and responsibilities ensures a balanced thriving society where citizens contribute to collective grass.

★ **Ethical considerations in civic engagement** (accountability, non-violence, peaceful dialogue, civility etc).

Ethical considerations in civic engagement ensures that

Participation in public affairs is constructive, respectful and geared toward the common good. Here are some core principles.

1. Accountability:

- Transparency: Participants should act transparently, sharing motivations and decisions openly.

- Responsibility: Individuals and groups must take responsibility for the outcomes of their actions both intended and unintended.

- Integrity: Upholding honesty and ethical conduct even when faced with intended, challenges.

2. Non-Violence:

- **Respect for human life:** Advocating for change without causing harm or destruction.
- **Constructive action:** Employing methods such as advocacy, education and lawful protest instead of coercion or force.

3. Peaceful dialogue:

- **Listening actively:** Engaging with others to understand their perspectives rather than simply to respond.
- **Open-mindedness:** Being willing to consider and

respect differing views.

- **Conflict Resolution:** Addressing disagreements through discussion, mediation or negotiation rather than hostility.

*4. Civility

- **Respect for others:** Treating all participants, regardless of their opinions with dignity.
- **Avoiding polarization:** Refraining from inflammatory language or personal attacks.
- **Promoting unity:** Encouraging cooperation and building bridges across divides.

5- Justice and Equity

- **Inclusion:** Ensuring all voices, especially marginalized ones, are heard and valued.

- **Fairness:** Pursuing outcomes that consider the rights and needs of all stakeholders.

6- Sustainability and long-term thinking

- **Foresight:** Considering the long-term impacts of civic actions on society and the environment.

- **Commitment:** Staying engaged over time, even when progress is slow.

By prioritizing these ethical considerations, civic engagement can foster a culture of trust, collaboration and shared responsibility in addressing societal challenges.

